

24STCV31432 24STCV31432

County: los-angeles
Division: Civil Law and Motion
Department: 506
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Case Number: 24STCV31432 Hearing Date: September 10, 2026 Dept: 506

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - CENTRAL DISTRICT

CRISTIAN RIOFRIO CHAVEZ,

Plaintiff,

vs.

INSTALLED BUILDING PRODUCTS, LLC, et al.,

Defendants.

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CASE NO.: 24STCV31432

[TENTATIVE] ORDER DENYING MOTION TO COMPEL FURTHER RESPONSES

Dept. 506

8:30 a.m.

September 10, 2026

On February 10, 2026, Plaintiff Cristian Riofrio Chavez filed a motion to compel Defendant Alert Insulation of California LLC's further responses to Requests for Production of Documents, Set Two.

A party may move to compel a further response to a discovery demand if the demanding party deems that the statement of compliance with the demand is incomplete; the representation of inability to comply is inadequate, incomplete, or evasive; or an objection in the response is without merit or too general. (Code Civ. Proc., §§ 2030.300, subd. (a) [interrogatories], 2031.310, subd. (a) [documents], 2033.290, subd. (a) [admissions].) The motion must set forth specific facts showing good cause justifying the discovery sought by the demand. (Code Civ. Proc., § 2031.310, subd. (b)(1) [documents].)

In response to RFP Nos. 13, 14, and 33, Defendant stated that it "will produce non-privileged, responsive documents in its possession custody or control." A statement that the party will comply shall state that the production "will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production." (Code Civ. Proc., § 2031.220.) The original responses are therefore noncompliant.

However, on January 29, 2026, Defendant indicated that it was "willing revise the responses to state, 'Subject to and without waiving the foregoing objections, ALERT LLC responds it will produce all non-privileged, responsive documents in its possession custody or control.'" (Robbins-Umel Decl., Ex. 7.) On August 21, 2026, Defendant again asserted, "Subject to and without waiving the foregoing objections, Defendant will comply with the request in whole by producing all documents in its possession, custody, or control to which no objection is being made." (Robbins-Umel Reply Decl., Ex. E.) This is now a full, compliant response.

In response to RFP No. 30, Defendant stated that "after a reasonable search and diligent inquiry, ALERT LLC is unable to comply with this request because responsive documents have never existed as Plaintiff voluntarily resigned." This is a full and compliant response. (Code Civ. Proc., § 2031.230.)

The motion is DENIED.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at SMCDEPT506@lacourt.ca.gov indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 10th day of September 2026

Hon. Thomas D. Long

Judge of the Superior Court